

SJPD Flock ALPR misuse matter (disclosed Sept. 11, 2026): investigation, audit-trail, and access-suspension records

MuckRock request #223481 · San Jose Police Department

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Captured 2026-10-09T04:35:35Z from the public request page (raw HTML sha256 af186e68d890c654371d68e0eb965cf79f53752d22ad2e8af6fe88a565854244). Communication text is extracted verbatim. Redacted: requester surname (first sender's full name reduced to first name); MuckRock upload links; MuckRock request routing addresses.

From: Brian — 2026-10-09T00:13:02.935251-04:00 (None)

Subject: None

To Whom It May Concern:

Pursuant to the California Public Records Act, I hereby request the following records:

On September 11, 2026, Chief Paul Joseph disclosed that the Department terminated an officer who, while off duty, used a personal device to conduct unauthorized searches of the Department's Flock Safety automated license plate reader (ALPR) system in connection with a domestic violence matter involving family members. As reported, the Department has said that the improper access was discovered in February 2025, that the officer was placed on administrative leave and later terminated, that the matter was referred to the Commission on Peace Officer Standards and Training, that a criminal case was submitted to the District Attorney's office and no criminal charges were filed, and that audit logs tracking access from the personal device provided the evidence. Below, "the Flock misuse matter" refers to that matter.

Records requested:

1. Records of the Department's investigation of the Flock misuse matter and of the discipline imposed, to the extent they are records described in Penal Code § 832.7(b)(1), including any record relating to a sustained finding described in subparagraph (C) or (E) of that paragraph, and including the categories of records listed in Penal Code § 832.7(b)(3).
2. The ALPR access records the Department identified or relied on in the Flock misuse matter as reflecting the unauthorized searches: the corresponding entries of the Department's Flock organization audit, in native export form with every field the export carries (including date and time, search type, networks searched, time frame, reason, and case number), and any Flock record of the device, application, or access method used for those searches (for example, mobile application or web browser). License plate numbers and other civilian identifying information may be redacted. Civil Code § 1798.90.52 provides that an ALPR operator that accesses ALPR information "shall do both of the following: (a) Maintain a record of that access. At a minimum, the record shall include all of the following: (1) The date and time the information is accessed. (2) The license plate number or other data elements used to query the ALPR system. (3) The username of the person who accesses the information (4) The purpose for accessing the information." Duty Manual section L 4207 (2024) provides that "[a]udit trails shall be maintained by the Department for a minimum of two (2) years." A response of "no responsive records" to this item would mean that the Department no longer has the access records that, as reported, provided the evidence in the matter.
3. Records reflecting the suspension or disabling of the officer's access to the Flock ALPR system in the Flock misuse matter, including any request or authorization to disable the account and the Flock user-management record of the change.

If any record or portion of a record is withheld, please identify the exemption asserted

for it and release any reasonably segregable portion. Please produce records for each item as they become available. I request electronic copies, with any audit-log export in its native spreadsheet or CSV format.

The requested documents will be made available to the general public, and this request is not being made for commercial purposes.

In the event that there are fees, I would be grateful if you would inform me of the total charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.

Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 10 calendar days, as the statute requires.

Sincerely,

Brian